

in *Ortmann v. Adecco, USA, Inc.*, 19CV355315], p. 3:5-7 [“Here, Google presents evidence that it did not employ Ms. Ortmann and urges that this will be an important threshold issue in the case governing her standing to bring PAGA claims against it.”].) In *Stafford v. Dollar Tree Stores, Inc.* (E.D.Cal. Nov. 20, 2014, No. 2:13-cv-1187 KJM CKD) 2014 U.S.Dist.LEXIS 163458 (*Stafford*), the Court of Appeal alluded to potential problems with discovery that could arise due to the pendency of two class action suits involving the same defendant in a different court, noting that the defendant claimed that it would have difficulty interviewing the unrepresented class members in one of the class actions. (*Id.* at *5-6.)

Here, outside of the nature of the PAGA claims themselves, which are admittedly outside the norm, Defendant points to nothing to distinguish this case from any other representative PAGA action. Defendant contends that discovery will be expensive and that Plaintiff alleges eight separate violations of the Labor Code. But, Defendant provides no evidence regarding the quantum of the expense or any reason to believe that discovery will be more complicated or burdensome than in any other PAGA case. (See Defendant’s Request for Judicial Notice, Ex. C [Order filed February 9, 2021 in *Cassell v. Google*, 17CV319202] [“Here, Google has shown through admissible, unrebutted evidence that considerable time and money may be saved if the issue of Mr. Cassel’s standing for his PAGA claims is resolved before broad discovery commences on the PAGA claims. Google claims without contradiction that the number of employees who might come within Mr. Cassel’s definition of ‘PAGA-aggrieved employees’ number in the thousands (perhaps over 10,000 employees). [Citation.] To undertake discovery concerning this many employees will be expensive and time-consuming, and that expense might be avoided if it turns out Mr. Cassel lacks standing.”]; see also *Stafford, supra*, 2014 U.S.Dist.LEXIS 163458, at *12 [“in light of the number of potential aggrieved employees, judicial economy favors deferring the representative portion of the PAGA claim until plaintiff’s status as an aggrieved employee with the right to bring this action is established”].)

The motion for bifurcation and the alternative motion for discovery sequencing, which is based on the same arguments, are DENIED.

XII. CONCLUSION

The motion for judgment on the pleadings is GRANTED WITH 20 DAYS’ LEAVE TO AMEND.

The motion for bifurcation and the alternative motion for discovery sequencing are DENIED.

The Court will prepare the final order.

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Calendar Line 6

Case Name: *Sarina Haley, et al. v. FF Properties, L.P., et al.*

Case No.: 25CV470518

Plaintiffs Sarina Haley (“Haley”), Sara Navarro (“Navarro”), and Katrina Lyons (“Lyons”) (collectively, “Plaintiffs”) bring this putative wage and hour class action against Defendants FF Properties L.P., their employer, and FF Properties II LP (collectively, “Defendants”).¹⁰

Before the Court is Defendants’ motion to compel arbitration. The motion is opposed and Defendants have filed a reply. As discussed below, the Court GRANTS the motion.

XIII. BACKGROUND

Defendant FF Properties L.P. is a Delaware limited partnership registered to do business in California as Fairfield Properties L.P., manages over 37,000 rental units, in addition to providing development, construction, renovation, asset and property management, and acquisition and disposition services, in 15 states. (Declaration of Jen Perley in Support of Defendants’ Motion to Compel Arbitration (“Perley Decl.”), ¶ 2.) FF Properties II LP is a separate entity affiliated with Fairfield and also a Delaware limited partnership registered to do business in California that manages approximately 5,000 rental units in nine states across the United States. (*Id.*, ¶¶ 1, 3.)

In the operative first amended complaint (“FAC”), Plaintiffs assert that they were or are employed by Defendants. (FAC, ¶ 18.) Haley worked for Defendants from July 2024 to the time of the filing of the FAC. (FAC, ¶ 25.) Lyons was employed by Defendants from December 2021 through approximately February 2022. (FAC, ¶ 26.) Navarro was employed by Defendants from September 2020 through approximately March 2023. (FAC, ¶ 27.) During their employment, Defendants failed to pay Plaintiffs for all hours worked, caused or allowed them to work “off the clock,” failed to pay them overtime wages, failed to provide them with meal and rest periods, failed to reimburse them for time spent working during meal periods, and failed to reimburse them for required business expenditures. (FAC, ¶¶ 2-4, 12, 20-22, 30-32, 56.)

Based on the foregoing, Plaintiffs initiated this action on July 14, 2025, with the filing of the original complaint, which they purport to bring on behalf of themselves and others similarly situated. On October 15, 2025, Plaintiffs filed the operative FAC, which asserts the following causes of action: (1) failure to pay minimum wage (Lab. Code, §§ 1194, 1197, and 1197.1); (2) failure to pay overtime wages (Lab. Code, §§ 510 and 1198); (3) meal break violations (Lab. Code, §§ 226.7 and 512, subd. (a)); (4) rest break violations (Lab. Code, § 226.7); (5) failure to timely pay wages during employment (Lab. Code, §§ 204 and 210); (6) wage statement violations (Lab. Code, § 226, subd. (a)); (7) failure to timely pay final wages (Lab. Code, §§ 201, 202, and 203); (8) failure to reimburse for business expenditures (Lab. Code, §§ 2800 and 2802); (9) violations of Business and Professions Code sections 17200, et

¹⁰ Defendants contend that FF Properties II LP never employed any of the Plaintiffs and that it was erroneously sued.